Best Practices for Biomedical Research Data Management

Module 5: Data Management Policy Ownership & Intellectual Property

Rebecca Reznik-Zellen, MLIS, UMass Medical School

This video will introduce viewers to the concepts of research data ownership and legal methods to either restrict or encourage use of research data and research data compilations, including funder requirements, intellectual property rights, copyright and Creative Commons licensing.

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Intellectual Property

"Creations of the mind: inventions, literary and artistic works, and symbols, names, images, and designs used in commerce"

World Intellectual Property Organization.

Examples

- Protocols
- Description of methodologies
- Data sets
- Publications
- Software code
- Description of instrumentation/inventions

Data Ownership

Who owns research data?

- Who is funding your research?
- What is your institution's data ownership policy?
- Are you working under a grant or contract?
- Are you the PI or student working under a PI in a lab?

Types of Funders

Funder Type	Objectives	Rights
Government agency	Fund research to improve the general health and welfare of society	Typically given to the institutions they award
Philanthropic organization	Interested in advancing particular causes	May retain or give away
Private funders	Motivated by profit as well as benefits to society	Typically retain rights

Federal Grants

- Funding agency gives the research institution the right to use data collected with public funds as an incentive to put research to use for the common good.
- Institution owns the data (including lab notebooks) but allows the principal investigator on the grant to be the steward of the data.
- PI takes responsibility for the collection, recording, storage, dissemination, retention and disposal of data.

Contracts

- Researcher is required to deliver a product or service, which is then usually controlled by the funding agency.
- Difference between grant and contract could determine who publishes and uses research data.

Data and Copyright

Copyright covers "original works of authorship fixed in any tangible medium of expression (17 U.S. Code § 102). Copyright gives authors the exclusive rights to control:

- Reproduction of the copyrighted work
- Preparation of derivative works
- Selling copies or transferring copyright ownership
- Performing or displaying the copyrighted work publicly (17 U.S. Code § 106)

Briney K. 2016. Copyright and Research Data. Available from: http://dataabinitio.com/?p=632.

Data and Copyright

- “Copyright does not protect facts, ideas, systems, or methods of operation, although it may protect the way these things are expressed.”
- Creative expressions of data, such as a chart or a table in a publication ARE copyrightable.
- Some compilations of data may constitution an original work and qualify for copyright.

Data and Copyright

How Do I Share My Research Data?

- If data does not qualify for copyright, you may limit how and if you share the data..
  - Release the data with a public domain waiver (CC0)
- If data is creative enough to merit copyright, use a Creative Commons license to indicate appropriate use.

Can I Use Someone Else's Data?

- If licensed with a CC0 or other license, you may use it in accordance with the license.
- You may use public domain data in your research.
- You may be able to make a Fair Use of someone's copyrighted content.
- Always cite your source.

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